

STAFF REPORT

Terre Pont Summation

Final Plat Process

CASE NUMBER: UDC-13-00357 **FILE CODE:** TERP-F
PREPARED BY: Jim Flesher
MEETING DATES: **Planning Commission:** October 7, 2013
City Council: October 14, 2013 (referral to Public Services Committee)

Required documents submission:

All required documents have been submitted and reviewed by staff; however, a revised Transportation Impact Study has not been submitted as required. See below.

- Complete Application
- Final Plat Map (revised map submitted September 9, 2013)
- Transportation Impact Study (revised study & addendum submitted October 4, 2013)
- Drainage Study (revised study submitted September 18, 2013)

STAFF RECOMMENDATION: The Planning and Development Office recommends approval of Terre Pont Final Plat, with the following condition:

1. Execution of a Development Agreement addressing the connection of Rue Terre to the southeast.

UPDATE (OCTOBER 8, 2013): At its regular meeting Monday, October 7, 2013, the Cheyenne Planning Commission voted unanimously to recommend approval of the final plat for Terre Pont Subdivision with the following condition:

1. Execution of a Development Agreement addressing the connection of Rue Terre to the southeast.

STAFF REPORT

Terre Pont

Final Plat Process

CASE NUMBER: UDC-13-00357 **FILE CODE:** TERP-F

PREPARED BY: Jim Flesher

MEETING DATES: **Planning Commission:** October 7, 2013
City Council: October 14, 2013 (referral to Public Services Committee)

SUBMITTED: August 30, 2013

OWNER: Edward George Cole, et al (303) 659-7262
15649 Harvest Mile Rd
Brighton, CO 80603

APPLICANT /AGENT: Mark Butler (307) 635-6827
Inberg-Miller Engineers
350 Parsley Blvd
Cheyenne, WY 82007

PROJECT: Terre Pont

WORK DESCRIPTION: Platting two lots for commercial development and adjacent right-of-way

LOCATION:

1) Legal Description: Portion of Section 20, T.14N., R.66W., 6th P.M., Laramie County, Wyoming

2) General Location: Northeast corner of Prairie Avenue and Frontier Mall Drive

3) Address: Vacant land

SIZE: 8.45 acres (2.19 acres of right-of-way)

CURRENT ZONING: CB, Community Business (zone change approved September 9, 2013)

PROPOSED ZONING: No change

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Hotel and future commercial development

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	A-1	County
South	Retail	PUD	City
East	Vacant	A-1, MUB	City, County
West	Retail	CB	City

PLAT ANALYSIS SUMMARY:

In order to address the need for “regional transportation systems with local networks that support multiple and alternative routes for daily trips, do not overly burden any single roadway, and include logical connections to existing, planned, or potential future streets” (UDC Sec. 4.3.1.d), connection of Rue Terre should occur with development of the subject property. The attached development agreement requires the connection to be made prior to issuance of a certificate of occupancy for Lot 2, Block 1, of Terre Pont Subdivision. Please see below for more information.

DESCRIPTION OF SITE AND SURROUNDINGS:

The subject property is approximately 8.45 acres of vacant land northeast of and adjacent to Frontier Mall Drive and Prairie Avenue. On the east side of the property is the platted but unbuilt Cutoff Road. The land raises several feet from Prairie Avenue, then slopes back down to where Rue Terre aligns. Frontier Mall Drive is fully constructed including the sidewalk. Prairie Avenue is built, but the sidewalk will need to be constructed as the property develops. Rue Terre and Cutoff Road are not constructed.



Looking northwest on Prairie Avenue. Subject property on right.

PROJECT DATA:

This plat proposes two lots; Lot 1 on the west being 3.1 acres and Lot 2 being 3.16 acres. One hundred forty feet of right-of-way, or 2.19 acres, will be dedicated to extend Rue Terre. Right-of-way for Cutoff Road is in place. Lot 1 is proposed for development of an extended-stay hotel. Rue Terre adjacent to the subdivision will be constructed with development of the hotel. The attached development agreement would require the remaining unconstructed section between where Cutoff Road is platted and the existing Rue Terre to the southeast, north of K-Mart, to be constructed with development of Lot 2.

At first, both lanes on Rue Terre will use the south half of the right-of-way, the same as it is north of Frontier

Mall Drive behind the shopping center there. The other half of the road will be constructed with future development to the north. Please the aerial map below for clarification.



PLAT ANALYSIS:

Review of a Final Plat is organized by analysis of the review criteria described in Final Plat Review Criteria outlined in Article 2, Section 2.1.3.d. The purpose of these review criteria is to provide a consistent review and discussion for Final Plat applications.

1 || Preliminary Plat – *The layout and design of the Final Plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the Final Plat brings the application in further compliance with the Comprehensive Plan.*

The Final Plat matches the approved Preliminary Plat.

2 || Preliminary Plat Conditions – *The application meets any conditions or modifications of the approved preliminary plat.*

No conditions were placed on the Preliminary Plat. Based on the Transportation Worksheet submitted with the Preliminary Plat, a Transportation Impact Study (TIS) was required with the Final Plat submittal. Revisions to the submitted TIS were required and submitted on October 4, 2013. Based on review of the TIS and discussions at Planning Commission and City Council during the preliminary plat process, a condition of connection of Rue Terre is recommended.

3 || Subdivision Regulations – *The application meets the purposes, intent, and applicable standards of Article 4.*

Article 4 is divided into five sections:

4.1 General Provisions

The first specific purpose of Article 4 listed in the UDC is to “Ensure that all development blocks and lots are served by necessary infrastructure services, including utilities, transportation, storm drainage, public safety, and community facilities, but recognize that necessary service levels may differ based on the context, character, and intensity of development.” Utilities and roads are being installed by the developer. Development of the property will increase pressure to construct Rue Terre from the subject property to where Rue Terre ends between Kmart and Sam’s Club.

4.2 Community Facilities and Fees

The Final Plat will require payment of park fees as outlined below (subject to change).

Land Acquisition Fee (PAI)	\$350 x	6.3 acres	=	\$2,205
Infrastructure Fee (PAI)	\$350 x	6.3 acres	=	<u>\$2,205</u>
TOTAL DUE W/ PLAT				\$4,410
Park Enhancement Fees (PEA) (due at building permit), Lot 1	\$1,100 x	3.1 acres		\$3,410
Park Enhancement Fees (PEA) (due at building permit), Lot 2	\$1,100 x	3.2 acres		<u>\$3,520</u>
TOTAL COMMUNITY FACILITY FEES	\$1,800 x	6.3 acres		\$11,340

4.3 Transportation Networks and Street Designs

The proposed development complies with the long-range transportation plan, maximum block perimeter, and maximum and minimum block face lengths. The location of the streets surrounding the subject property is generally established already. Sidewalks will need to be installed where they do not currently exist. In order to address transportation connectivity, Rue Terre needs to be constructed to the south to where it currently ends behind K-Mart.



Looking southeast at where Rue Terre ends north of K-Mart.



Looking south on Cutoff Road, east of subject property.



Looking north at Lot 2, Block 1, Terre Fini north of K-Mart.



Looking southeast from where Rue Terre ends northwest of subject property at Frontier Mall Drive.
Subject property on right. Back of K-Mart in background.

4.4 Open Space Systems

Open space equivalent to eight percent of the area of the building footprint will be required on-site, which will be private open space. This requirement will be evaluated during the Site Plan review.

4 || Phasing Amenities, Facilities - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

An extended stay hotel is proposed for Lot 1. Street improvements will be made to Rue Terre the length of the entire subdivision (e.g., adjacent to both Lots 1 and 2). No development is proposed for Lot 2 at this time. It is recommended that construction of this portion of Rue Terre be required prior to issuance of a Certificate of Occupancy (CO) for Lot 2 of the subject property. This can best be accomplished through a development agreement between the City and the developer.

For background information, in order to develop commercial property Site Plan approval is required. Once the Site Plan is approved a Building Permit can be issued. In order to occupy the building a Certificate of Occupancy (CO) is required, which determines that all Building Code and Site Plan requirements have been met. Placing the requirement for construction of the road on the issuance of the CO allows the road to be constructed simultaneously with the development of the lot.

5 || Studies and Reports - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

The Drainage Study was reviewed and corrections made based on those reviews. A revised Transportation Impact Study (TIS) and addendum was submitted October 4, 2013.

6 || Zoning - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

Both lots appear to be developable with the proposed CB zoning.

7 || Adjacent Development - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

The properties to the south and west are already similarly developed. The proposed development should have a positive effect on adjacent vacant land by extending water and sewer lines and street improvements.

8 || Health Safety and Welfare - *The application is not harmful to the public health, safety, and welfare.*

Development will be required to meet all applicable requirements regarding engineering, building construction, fire access and hydrants, and food safety, among others. A revised TIS is required in order to properly assess impacts of the proposed development on the transportation system and to determine improvements necessary to maintain adequate levels of service. While it is not anticipated that the revised TIS would cause a major impact on the proposed development, it may affect the discussion regarding the extension of Rue Terre to where it currently exists to the east of the subject property. The

City Attorney's office is preparing a draft development agreement regarding Rue Terre's construction timing as well, which will be sent to the applicant when it is available. If the applicant is agreement to the terms of the development agreement it will be submitted to the governing body for approval and recorded with the Final Plat, if approved.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

Traffic Engineering: (Note these comments were addressed with a revised TIS and addendum and the proposed development agreement.)

1. A Transportation Impact Study (TIS) is required as the proposed development daily vehicle trip-end generation is 1,113 and the peak-hour trip generation in the P.M. Peak is 113, which exceed the threshold volumes of 1,000 trip-end and 100 peak-hour trips respectively. We have received and reviewed a TIS dated August 5, 2013, by Inberg-Miller Engineers. Our comments are as follows:
 - a. Evaluate the sight distance triangles at the intersections of Frontier Mall Drive with Prairie Avenue and Rue Terre Drive.
 - b. There is a discussion in the TIS under the recommendations that consideration should be given to restricting Kohl's driveway to right-in, right-out. Access management necessary as a result of development should be incorporated into the offsite construction. The location of access to properties on opposite sides of roadways shall be coordinated so they do not interfere with one another. Driveway approaches directly opposite each other are desirable. Every effort should be made to coordinate the location of driveways and roadways directly opposite of each other. If this is not possible, the resulting "T" configurations shall be spaced a minimum of 100 feet apart on collectors and 200 feet on arterials.
 - c. The Cheyenne MPO Dell Range Corridor Study does not have any bearing on this project. Any infrastructure necessary to make the hotel and restaurant project viable needs to be incorporated into this project design and construction.
 - d. Crash data and analysis is required as part of a TIS in accordance with Article 3 of the Unified Development Code.
 - e. It appears that the assumptions contain in the Transportation Worksheet were not followed. The Worksheet indicated that trip generation was based off a 5,000 square feet building. The trips generated and used in the trip distribution and the analysis appears to have been based off of a 3,000 square feet building. Please review and revise all analysis accordingly.
 - f. An interim condition was analyzed in addition to the traditional analysis horizons. The future forecast with development indicates no change in traffic was assumed on Dell Range Boulevard. Is the assumption that no traffic will enter the site from Rue Terre via Dell Range?
 - g. The analysis at the signalized intersections appears to have been performed with cycle lengths that vary from 88 seconds to 220 seconds. This analysis does not reflect the actual cycle lengths along this coordinated corridor. I have attached the timing plans for all signalized intersections. Please review and revise all analysis accordingly.
 - h. All Arterial and Collector streets shall be connected and extended to the boundary of the site.
 - i. For adjacent plotted lots or future phase developments within the City along arterials and collectors, access points should be combined and shared within blocks. The future phase access should be shared with the proposed hotel.

Engineering: (Note these comments would be addressed with the proposed development agreement.)

1. When constructed, this project will leave approximately 460 feet of Rue Terre unconstructed behind K-Mart. This stretch will probably be difficult to keep from becoming an unofficial road between the two constructed sections. This may result in the City having to incur some expense to construct the missing piece.

Board of Public Utilities:

1. The exiting 8" water main on the west end of Rue Terre will need to be extended from its current location to tie into the exiting 12" water on the east end of Rue Terre to complete the water main loop. All BOPU's utilities shall be located in the City of Cheyenne Street Right-of-Ways or have the appropriate easements record at the Clerk of Laramie County Real Estate Office or easements shown on the recorded plat.

Charter (formerly Optimum):

1. Charter communications has fiber optics in the road ROW at the northwest corner of the intersection of Prairie Ave and Cut Off Road. This fiber line crosses Prairie from the south to this corner then crosses Cut Off Road from this corner east to the 10' utility easement along the north property line of Lot 1 Block 1 of Terre Fini 2nd Filing.

City Surveyor: (Note: These comments were addressed with a revised Final Plat map.)

1. Using the dimension of 700.76' for the northwesterly boundary line, and the overall dimension of 187.15' on the southerly (tangent) lines of Lots 1 and 2, as provided in the legal description; the boundary description closes mathematically and is properly described in the Dedication.
2. The line segments for the northwesterly boundary line do not properly add up to the total dimension of 700.76'. The two dimensions provided add up to 700.76', but the right of way width for Rue Terre is 140', not only the 60.35' dimension provided on the map. And I believe the northwesterly dimension for Lot 1 should only be 560'+/-, instead of the 640.41' dimension provided. This is required to be double checked and the individual line segment dimensions properly corrected and added to the map.
3. On the southerly boundary, the Lot 2 segment of the tangent, the dimension of 179.05' needs to be added. This is required.

Drainage Engineering: (Note: These comments were addressed with a revised Drainage Study.)

1. The Time of Concentration, Tc, calculations submitted are based on an overland flow equation. This equation is not valid once the runoff becomes concentrated, such as in channels, gutters, and/or pipes. This equation is also only valid up to lengths of approximately 500 feet and 300 feet, pre- and post-project respectively. Please revise Tc calculations to reflect the above criteria, or submit justification for alternate methodology.
2. Rational Method calculations for the City of Cheyenne must include the C-Value Correction Coefficient, Cf. This coefficient is 1.0 for storms up to the 25-year, and 1.1, 1.2, and 1.25 for the 25-, 50-, and 100-year storms. Please revise the Rational Method calculations to include this coefficient, or submit justification for alternate methodology.
3. Please submit complete detention volume calculations.
4. The City of Cheyenne criteria for detention pond sizing in the Dry Creek drainage basin is based on the post-project 100-year peak discharge not exceeding the pre-project 20-year peak discharge. Please submit calculations that meet this criterion, or submit justification for alternate methodology.

Note: The City Engineer's Office has available a FAA Method spreadsheet that includes the information to assist in addressing the above comments.

GIS: (Note: This comment was addressed with a revised Final Plat map.)

1. Need block number.

Fire & Rescue: (Note: This comment shall be addressed with the Site Plan.)

1. Fire hydrant placement and fire access shall comply with the 2006 edition of the International Fire Code Appendix C & D.

MPO: (Note these comments were addressed with a revised TIS and addendum and the proposed development agreement.)

1. A revised traffic study will be required as the current one submitted is incomplete. i.e., crash data is available from WYDOT or the MPO to analyze the current traffic safety of this site and also with this development. All necessary access management and traffic control as a result of development shall be incorporated into the project. The location of accesses shall follow all development regulations as per all UDC subdivision regulations including section 4.3.6. The current Dell Range and Prairie Avenue Corridor Study has no bearing on this project. All necessary mitigation of impacts that this project will require should be determined and indicated in the design and construction documents.

Urban Planning: (Note: These comments were addressed with a revised Final Plat map.)

1. Add "Block 1" to map.
2. In the Dedication delete "are the following owners".
3. Replace "TERRE PONT ADDITION" with "TERRE PONT SUBDIVISION" in Dedication and Surveyor's Certificate to match general description in the lower right-hand corner.
4. "Casey" is misspelled under the Dedication as "Casy".
5. Add "Cheyenne" before "Laramie County" in the lower right-hand corner.
6. Delete "and Laramie County Regional" in the Approval block.
7. Replace "Lot 10" with "Lot 7" for "FRONTIER MALL, 3rd FILING".

Reviewing Agencies with No Comment: None

Reviewing Agencies Not Responding: CenturyLink; Cheyenne Light, Fuel & Power

Other Comments Received: None

Encl: Final Plat Map
Aerial Photo Exhibit

cc: Agent/Applicant
File